

1 ENGROSSED SENATE
2 BILL NO. 346

By: Bergstrom, Mann, Hamilton,
and Sacchieri of the Senate

3 and

4 Hays of the House
5
6

7 An Act relating to school personnel; amending 70 O.S.
8 2021, Section 3-104, as last amended by Section 1,
Chapter 445, O.S.L. 2025 (70 O.S. Supp. 2025, Section
9 3-104), which relates to the powers and duties of the
State Board of Education; allowing the Board to
10 suspend or revoke certain license or certificate for
conviction of certain misdemeanor; amending 70 O.S.
11 2021, Section 5-142, as amended by Section 3, Chapter
101, O.S.L. 2025 (70 O.S. Supp. 2025, Section 5-142),
12 which relates to criminal history record checks for
school employees; requiring certain affidavit to
13 include certain attestation; requiring affidavit to
include certain information; requiring certain
14 prospective employer to contact certain prior
employer to determine the validity of certain
15 affidavit; creating misdemeanor offense; providing
penalties; prohibiting a board of education from
16 hiring certain teacher who fails to provide certain
affidavit; updating statutory language; updating
17 statutory references; providing an effective date;
and declaring an emergency.
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19

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-104, as
22 last amended by Section 1, Chapter 445, O.S.L. 2025 (70 O.S. Supp.
23 2025, Section 3-104), is amended to read as follows:
24

1 Section 3-104. A. The supervision of the public school system
2 of Oklahoma shall be vested in the State Board of Education and,
3 subject to limitations otherwise provided by law, the State Board of
4 Education shall:

5 1. Adopt policies and make rules for the operation of the
6 public school system of the state;

7 2. Appoint, prescribe the duties, and fix the compensation of a
8 secretary, an attorney, and all other personnel necessary for the
9 proper performance of the functions of the State Board of Education.
10 The secretary shall not be a member of the Board;

11 3. Submit to the Governor a departmental budget based upon
12 major functions of the State Department of Education as prepared by
13 the Superintendent of Public Instruction and supported by detailed
14 data on needs and proposed operations as partially determined by the
15 budgetary needs of local school districts filed with the State Board
16 of Education for the ensuing fiscal year. Appropriations therefor
17 shall be made in lump-sum form for each major item in the budget as
18 follows:

19 a. State Aid to schools,

20 b. the supervision of all other functions of general and
21 special education including general control, free
22 textbooks, school lunch, Indian education, and all
23 other functions of the Board and an amount sufficient
24 to adequately staff and administer these services, and

1 c. the Board shall determine the details by which the
2 budget and the appropriations are administered.
3 Annually, the Board shall make preparations to
4 consolidate all of the functions of the Department in
5 such a way that the budget can be based on two items,
6 administration and aid to schools. A maximum amount
7 for administration shall be designated as a part of
8 the total appropriation;

9 4. On the first day of December preceding each regular session
10 of the Legislature, prepare and deliver electronically to the
11 Governor and the Legislature a report for the year ending June 30
12 immediately preceding the regular session of the Legislature. The
13 report shall contain:

14 a. detailed statistics and other information concerning
15 enrollment, attendance, expenditures including State
16 Aid, and other pertinent data for all public schools
17 in this state,

18 b. reports from each and every division within the State
19 Department of Education as submitted by the
20 Superintendent of Public Instruction and any other
21 division, department, institution, or other agency
22 under the supervision of the Board,

23 c. recommendations for the improvement of the public
24 school system of the state,

- 1 d. a statement of the receipts and expenditures of the
2 State Board of Education for the past year, and
3 e. a statement of plans and recommendations for the
4 management and improvement of public schools and such
5 other information relating to the educational
6 interests of the state as may be deemed necessary and
7 desirable;

8 5. Provide for the formulation and adoption of curricula,
9 courses of study, and other instructional aids necessary for the
10 adequate instruction of pupils in the public schools;

11 6. Have authority in matters pertaining to the licensure and
12 certification of persons for instructional, supervisory, and
13 administrative positions and services in the public schools of the
14 state subject to the provisions of Section 6-184 of this title, and
15 shall ~~formulate~~ promulgate rules governing the issuance and
16 revocation of certificates for superintendents of schools,
17 principals, supervisors, librarians, clerical employees, school
18 nurses, school bus drivers, visiting teachers, classroom teachers,
19 and for other personnel performing instructional, administrative,
20 and supervisory services, but not including members of boards of
21 education and other employees who do not work directly with pupils,
22 and may charge and collect reasonable fees for the issuance of such
23 certificates:
24

- 1 a. the State Department of Education shall not issue a
2 certificate to and shall revoke the certificate of any
3 person who has been convicted, whether upon a verdict
4 or plea of guilty or upon a plea of nolo contendere,
5 or received a suspended sentence or any probationary
6 term for a crime or an attempt to commit a crime
7 provided for in Section 843.5 of Title 21 of the
8 Oklahoma Statutes if the offense involved sexual abuse
9 or sexual exploitation as those terms are defined in
10 Section 1-1-105 of Title 10A of the Oklahoma Statutes,
11 Section 741, 843.1, if the offense included sexual
12 abuse or sexual exploitation, 865 et seq., 885, 888,
13 891, 1021, 1021.2, 1021.3, 1040.13a, 1087, 1088,
14 1111.1, 1114, or 1123 of Title 21 of the Oklahoma
15 Statutes or who enters this state and who has been
16 convicted, received a suspended sentence, or received
17 a deferred judgment for a crime or attempted crime
18 which, if committed or attempted in this state, would
19 be a crime or an attempt to commit a crime provided
20 for in any of the laws,
21 b. except as provided for in subparagraph a of this
22 paragraph, the State Board of Education shall have the
23 authority to revoke or suspend a license or
24 certificate only for the following reasons:

(1) a willful violation of any federal or state law,
(2) the abuse or neglect of a child,
(3) moral turpitude, ~~or~~
(4) a conviction for any of the offenses or basis for
revocation set forth in this section and Section
3-104.1 of this title, or
(5) a conviction, whether upon a verdict or plea of
guilty or upon a plea of nolo contendere, for
willfully making a false statement in an
affidavit required by Section 5-142 of this
title,

c. the State Board of Education shall not have the
authority to summarily revoke or suspend a license or
certificate pending an individual proceeding for
revocation or other action unless for a valid
emergency as defined in the Administrative Procedures
Act. Upon initiating a formal investigation, the
State Department of Education shall notify via
certified mail and electronic mail the superintendent
of the school district where the license or
certificate holder is employed. In no event shall the
State Board of Education move to revoke or suspend a
license or certificate, for an emergency or otherwise,
unless the license or certificate holder and any

1 employing school district received notice via
2 certified mail and electronic mail within three (3)
3 days of the date the application was filed with the
4 State Board of Education, and

- 5 d. all funds collected by the State Department of
6 Education for the issuance of certificates to
7 instructional, supervisory, and administrative
8 personnel in the public schools of the state shall be
9 deposited in the "Teachers' Certification Fund" in the
10 State Treasury and may be expended by the State Board
11 of Education to finance the activities of the State
12 Department of Education necessary to administer the
13 program, for consultative services, publication costs,
14 actual and necessary travel expenses as provided in
15 the State Travel Reimbursement Act incurred by persons
16 performing research work, and other expenses found
17 necessary by the State Board of Education for the
18 improvement of the preparation and certification of
19 teachers in this state. Provided, any unobligated
20 balance in the Teachers' Certification Fund in excess
21 of Ten Thousand Dollars (\$10,000.00) on June 30 of any
22 fiscal year shall be transferred to the General
23 Revenue Fund of this state. Until July 1, 1997, the
24 State Board of Education shall have authority for

1 approval of teacher education programs. The State
2 Board of Education shall also have authority for the
3 administration of teacher residency and professional
4 development, subject to the provisions of the Oklahoma
5 Teacher Preparation Act;

6 7. Promulgate rules governing the classification, inspection,
7 supervision, and accrediting of all public nursery, kindergarten,
8 elementary and secondary schools, and on-site educational services
9 provided by public school districts or state-accredited private
10 schools in partial hospitalization programs, day treatment programs,
11 and day hospital programs as defined in Section 3-104.7 of this
12 title and Section 175.20 of Title 10 of the Oklahoma Statutes for
13 persons between the ages of three (3) and twenty-one (21) years of
14 age in the state. However, no school shall be denied accreditation
15 solely on the basis of average daily attendance.

16 Any school district which maintains an elementary school and
17 faces the necessity of relocating its school facilities because of
18 construction of a lake, either by state or federal authority, which
19 will inundate the school facilities, shall be entitled to receive
20 probationary accreditation from the State Board of Education for a
21 period of five (5) years after June 12, 1975, and any school
22 district, otherwise qualified, shall be entitled to receive
23 probationary accreditation from the State Board of Education for a
24 period of two (2) consecutive years to attain the minimum average

1 daily attendance. The Head Start and public nurseries or
2 kindergartens operated from community action agency funds shall not
3 be subjected to the accrediting rules of the State Board of
4 Education. Neither will the State Board of Education make rules
5 affecting the operation of the public nurseries and kindergartens
6 operated from federal funds secured through community action
7 agencies even though they may be operating in the public schools of
8 the state. However, any of the Head Start or public nurseries or
9 kindergartens operated under federal regulations may make
10 application for accrediting from the State Board of Education but
11 will be accredited only if application for the approval of the
12 programs is made. The status of no school district shall be changed
13 which will reduce it to a lower classification until due notice has
14 been given to the proper authorities thereof and an opportunity
15 given to correct the conditions which otherwise would be the cause
16 of such reduction.

17 Private and parochial schools may be accredited and classified
18 in like manner as public schools or, if an accrediting association
19 is approved by the State Board of Education, by procedures
20 established by the State Board of Education to accept accreditation
21 by such accrediting association, if application is made to the State
22 Board of Education for such accrediting;

23 8. Be the legal agent of this state to accept, in its
24 discretion, the provisions of any Act of Congress appropriating or

1 apportioning funds which are now, or may hereafter be, provided for
2 use in connection with any phase of the system of public education
3 in Oklahoma. It shall prescribe such rules as it finds necessary to
4 provide for the proper distribution of such funds in accordance with
5 the state and federal laws;

6 9. Be and is specifically hereby designated as the agency of
7 this state to cooperate and deal with any officer, board, or
8 authority of the United States ~~Government~~ government under any law
9 of the United States which may require or recommend cooperation with
10 any state board having charge of the administration of public
11 schools unless otherwise provided by law;

12 10. Be and is hereby designated as the state educational agency
13 referred to in Public Law 396 of the 79th Congress of the United
14 States, as amended, which may be known as the Richard B. Russell
15 National School Lunch Act, and the State Board of Education is
16 hereby authorized and directed to accept the terms and provisions of
17 the act and to enter into such agreements, not in conflict with the
18 Oklahoma Constitution ~~of Oklahoma~~ or the United States Constitution
19 and Statutes ~~of the United States~~, as may be necessary or
20 appropriate to secure for this state the benefits of the school
21 lunch program established and referred to in the act;

22 11. Have authority to secure and administer the benefits of the
23 Richard B. Russell National School Lunch Act, Public Law 396 of the
24 79th Congress of the United States, as amended, in this state and is

1 hereby authorized to employ or appoint and fix the compensation of
2 such additional officers or employees and to incur such expenses as
3 may be necessary for the accomplishment of the above purpose, and
4 administer the distribution of any state funds appropriated by the
5 Legislature required as federal matching to reimburse on children's
6 meals;

7 12. Accept and provide for the administration of any land,
8 money, buildings, gifts, donations, or other things of value which
9 may be offered or bequeathed to the schools under the supervision or
10 control of the Board;

11 13. Have authority to require persons having administrative
12 control of all school districts in Oklahoma to make such regular and
13 special reports regarding the activities of the schools in the
14 districts as the Board may deem needful for the proper exercise of
15 its duties and functions. Such authority shall include the right of
16 the State Board of Education to withhold all state funds under its
17 control, to withhold official recognition including accrediting,
18 until such required reports have been filed and accepted in the
19 office of the Board and to revoke the certificates of persons
20 failing or refusing to make such reports;

21 14. Have general supervision of the school lunch program. The
22 State Board of Education may sponsor workshops for personnel and
23 participants in the school lunch program and may develop, print, and
24 distribute free of charge or sell any materials, books, and

1 bulletins to be used in the school lunch programs. There is hereby
2 created in the State Treasury a revolving fund for the Board, to be
3 designated the "School Lunch Workshop Revolving Fund". The fund
4 shall consist of all fees derived from or on behalf of any
5 participant in any such workshop sponsored by the State Board of
6 Education, or from the sale of any materials, books, and bulletins,
7 and funds shall be disbursed for expenses of such workshops and for
8 developing, printing, and distributing of the materials, books, and
9 bulletins relating to the school lunch program. The fund shall be
10 administered in accordance with Section 155 of Title 62 of the
11 Oklahoma Statutes;

12 15. Prescribe all forms for school district and county officers
13 to report to the State Board of Education where required. The State
14 Board of Education shall also prescribe a list of appropriation
15 accounts by which the funds of school districts shall be budgeted,
16 accounted for, and expended; and it shall be the duty of the State
17 Auditor and Inspector in prescribing all budgeting, accounting, and
18 reporting forms for school funds to conform to such lists;

19 16. Provide for the establishment of a uniform system of pupil
20 and personnel accounting, records, and reports;

21 17. Have authority to provide for the health and safety of
22 school children and school personnel while under the jurisdiction of
23 school authorities;

24

1 18. Provide for the supervision of the transportation of
2 pupils;

3 19. Have authority, upon request of the local school board, to
4 act in behalf of the public schools of the state in the purchase of
5 transportation equipment;

6 20. Have authority and is hereby required to perform all duties
7 necessary to the administration of the public school system in
8 Oklahoma as specified in the Oklahoma School Code; and, in addition
9 thereto, those duties not specifically mentioned herein if not
10 delegated by law to any other agency or official;

11 21. Administer the State Public Common School Building
12 Equalization Fund established by Section 32 of Article X of the
13 Oklahoma Constitution. Any monies as may be appropriated or
14 designated by the Legislature, other than ad valorem taxes, any
15 other funds identified by the State Department of Education, which
16 may include, but not be limited to, grants-in-aid from the federal
17 government for building purposes, the proceeds of all property that
18 shall fall to the state by escheat, penalties for unlawful holding
19 of real estate by corporations, and capital gains on assets of the
20 permanent school funds, shall be deposited in the State Public
21 Common School Building Equalization Fund. The fund shall be used to
22 aid school districts and charter schools in acquiring buildings,
23 subject to the limitations fixed by Section 32 of Article X of the
24 Oklahoma Constitution. It is hereby declared that redbud school

1 grants disbursed from the State Public Common School Building
2 Equalization Fund shall be used for the same purposes as a building
3 fund, as provided for in Section 1-118 of this title. It is hereby
4 declared that the term "school districts" as used in Section 32 of
5 Article X of the Oklahoma Constitution shall mean school districts
6 and eligible charter schools as defined in subsection B of this
7 section. The State Board of Education shall disburse redbud school
8 grants annually from the State Public Common School Building
9 Equalization Fund to public schools and eligible charter schools
10 pursuant to subsection B of this section. The Board shall
11 promulgate rules for the implementation of disbursing redbud school
12 grants pursuant to this section. The State Board of Education shall
13 prescribe rules for making grants of aid from, and for otherwise
14 administering, the fund pursuant to the provisions of this
15 paragraph, and may employ and fix the duties and compensation of
16 technicians, aides, clerks, stenographers, attorneys, and other
17 personnel deemed necessary to carry out the provisions of this
18 paragraph. The cost of administering the fund shall be paid from
19 monies appropriated to the State Board of Education for the
20 operation of the State Department of Education. From monies
21 apportioned to the fund, the State Department of Education may
22 reserve not more than one-half of one percent ($1/2$ of 1%) for
23 purposes of administering the fund;

1 22. Recognize that the Director of the Department of
2 Corrections shall be the administrative authority for the schools
3 which are maintained in the state reformatories and shall appoint
4 the principals and teachers in such schools. Provided, that rules
5 of the State Board of Education for the classification, inspection,
6 and accreditation of public schools shall be applicable to such
7 schools; and such schools shall comply with standards set by the
8 State Board of Education; and

9 23. Have authority to administer a revolving fund which is
10 hereby created in the State Treasury, to be designated the
11 "Statistical Services Revolving Fund". The fund shall consist of
12 all monies received from the various school districts of the state,
13 the United States ~~Government~~ government, and other sources for the
14 purpose of furnishing or financing statistical services and for any
15 other purpose as designated by the Legislature. The State Board of
16 Education is hereby authorized to enter into agreements with school
17 districts, municipalities, the United States ~~Government~~ government,
18 foundations, and other agencies or individuals for services,
19 programs, or research projects. The Statistical Services Revolving
20 Fund shall be administered in accordance with Section 155 of Title
21 62 of the Oklahoma Statutes.

22 B. 1. The redbud school grants shall be determined by the
23 State Department of Education as follows:
24

- a. divide the county four-mill levy revenue by four to determine the nonchargeable county four-mill revenue for each school district,
- b. determine the amount of new revenue generated by the five-mill building fund levy as authorized by Section 10 of Article X of the Oklahoma Constitution for each school district as reported in the Oklahoma Cost Accounting System for the preceding fiscal year,
- c. add the amounts calculated in subparagraphs a and b of this paragraph to determine the nonchargeable millage for each school district,
- d. add the nonchargeable millage in each district statewide as calculated in subparagraph c of this paragraph and divide the total by the average daily membership in public schools statewide based on the preceding school year's average daily membership, according to the provisions of Section 18-107 of this title. This amount is the statewide nonchargeable millage per student, known as the baseline local funding per student,
- e. all eligible charter schools shall be included in these calculations as unique school districts, separate from the school district that may sponsor the eligible charter school, and the total number of

- 1 districts shall be used to determine the statewide
2 average baseline local funding per student,
- 3 f. for each school district or eligible charter school
4 which is below the baseline local funding per student,
5 the Department shall subtract the baseline local
6 funding per student from the average nonchargeable
7 millage per student of the school district or eligible
8 charter school to determine the nonchargeable millage
9 per student shortfall for each district, and
- 10 g. the nonchargeable millage per student shortfall for a
11 school district or eligible charter school shall be
12 multiplied by the average daily membership of the
13 preceding school year of the eligible school district
14 or eligible charter school. This amount shall be the
15 redbud school grant amount for the school district or
16 eligible charter school.

17 2. For fiscal year 2022, monies for the redbud school grants
18 shall be expended from the funds apportioned pursuant to Section 426
19 of Title 63 of the Oklahoma Statutes. For fiscal year 2023 and each
20 subsequent fiscal year, monies for the redbud school grants shall be
21 appropriated pursuant to Section 426 of Title 63 of the Oklahoma
22 Statutes, not to exceed three-fourths ($3/4$) of the tax collected in
23 the preceding fiscal year pursuant to Section 426 of Title 63 of the
24 Oklahoma Statutes as determined by the Oklahoma Tax Commission. For

1 fiscal year 2023 and each subsequent fiscal year, if such
2 appropriated funds are insufficient to fund the redbud school
3 grants, then an additional apportionment of funds shall be made from
4 sales tax collections as provided by subsection D of Section 1353 of
5 Title 68 of the Oklahoma Statutes. If both funds are insufficient,
6 the Department shall promulgate rules to permit a decrease to the
7 baseline local funding per student to the highest amount allowed
8 with the funding available.

9 3. As used in this section, "eligible charter school" shall
10 mean a charter school which is sponsored pursuant to the provisions
11 of the Oklahoma Charter Schools Act. Provided, however, eligible
12 charter school shall not include a statewide virtual charter school
13 sponsored by the Statewide Charter School Board but shall only
14 include those which provide in-person or blended instruction, as
15 provided by Section 1-111 of this title, to not less than two-thirds
16 (2/3) of students as the primary means of instructional service
17 delivery.

18 4. The Department shall develop a program to acknowledge the
19 redbud school grant recipients and shall include elected members of
20 the House of Representatives and Senate who represent the school
21 districts and eligible charter schools.

22 5. The Department shall create a dedicated page on its website
23 listing annual redbud school grant recipients, amount awarded to
24

1 each recipient, and other pertinent information about the Redbud
2 School Funding Act.

3 6. The Department shall provide the ~~chair~~ Chair of the House
4 Appropriations and Budget Committee and the ~~chair~~ Chair of the
5 Senate Appropriations Committee no later than February 1 of each
6 year with an estimate of the upcoming year's redbud school grant
7 allocation as prescribed by this section.

8 SECTION 2. AMENDATORY 70 O.S. 2021, Section 5-142, as
9 amended by Section 3, Chapter 101, O.S.L. 2025 (70 O.S. Supp. 2025,
10 Section 5-142), is amended to read as follows:

11 Section 5-142. A. Except as otherwise provided for in
12 subsection F of this section, for purposes of employment, a board of
13 education may request in writing to the State Board of Education
14 that a national criminal history record check be conducted of any
15 employee of the school and shall request such information for any
16 person seeking employment with the school; provided, that a board of
17 education shall not be required to obtain a new criminal history
18 record check for an individual who has obtained certification from
19 the State Department of Education within the previous twelve (12)
20 months. The Oklahoma State Bureau of Investigation (OSBI) shall
21 obtain fingerprints of the employee or prospective employee and
22 require that the person pay a search fee not to exceed Fifty Dollars
23 (\$50.00) or the cost of the search, whichever is the lesser amount.
24 The fee shall be deposited in the OSBI Revolving Fund. School

1 districts may reimburse employees for the cost of the search. The
2 State Board of Education shall contact the OSBI for any national
3 criminal history record of the person within fourteen (14) working
4 days of receiving a written request from the board of education.

5 B. The Oklahoma State Bureau of Investigation shall provide the
6 national criminal history record check requested by the State Board
7 of Education within fourteen (14) working days from the receipt of
8 the request. The Bureau may contact the Federal Bureau of
9 Investigation to obtain the information requested.

10 C. The State Board of Education shall provide the information
11 received from the Oklahoma State Bureau of Investigation to the
12 board of education within fourteen (14) days from the receipt of the
13 information. The State Board of Education shall provide any follow-
14 up information received from the OSBI concerning a person for whom a
15 national criminal history record check was requested to the
16 employing board of education.

17 D. For the purpose of this section:

18 1. "Board of education" includes both public and private boards
19 of education within or outside this state;

20 2. "Employing agency" means a political subdivision or law
21 enforcement agency in this state;

22 3. "Law enforcement officer" means a peace or police officer
23 who is certified by the Council on Law Enforcement Education and
24 Training;

1 4. "National criminal history record check" means a national
2 criminal history record check as defined in Section 150.9 of Title
3 74 of the Oklahoma Statutes; and

4 5. "Prospective employee" means an individual who has received
5 an offer of temporary employment from a school district pending the
6 results of the national criminal history record check.

7 E. Each public board of education within this state shall
8 promulgate a statement regarding the felony record search policy for
9 that school district. The policy may permit temporary employment of
10 prospective employees for a maximum of sixty (60) days pending
11 receipt of results of national criminal history record check
12 requests. The temporary employment of the prospective employee
13 shall terminate after sixty (60) days unless the school district
14 receives the results of the national criminal history record check.
15 The sixty-day temporary employment period shall begin on the first
16 day the prospective employee reports for duty at the employing
17 school district. Prospective employees shall be notified of the
18 requirement, the fee, and the reimbursement policy when first
19 interviewed concerning employment. The school district's
20 reimbursement policy shall provide, at a minimum, that employees
21 shall be promptly reimbursed in full for the fee if employed by the
22 district at the time the national criminal history record check
23 request is made unless the person was employed pending receipt of
24 results.

1 F. 1. Any person who has been employed as a full-time teacher
2 by a school district in this state and applies for employment as a
3 full-time teacher in a school district in this state may not be
4 required to have a national criminal history record check if the
5 teacher produces a copy of a national criminal history record check
6 completed within the preceding five (5) years and ~~a letter~~ an
7 affidavit from the school district in which the teacher was employed
8 stating the teacher left in good standing ~~and~~. The affidavit shall
9 attest as to whether the teacher was the subject of any allegation
10 of inappropriate behavior with a student and whether there was a
11 pending or ongoing investigation of inappropriate behavior between
12 the teacher and a student. If an allegation of inappropriate
13 behavior was investigated by an employing school district, the
14 affidavit shall state whether the allegation was substantiated,
15 unsubstantiated, or closed with no finding of misconduct. The
16 affidavit shall include contact information for the prior employing
17 school district, which the prospective employing school district
18 shall contact to determine the validity of the submitted affidavit.

19 2. For any person applying for employment as a substitute
20 teacher, a national criminal history record check shall be required
21 for the school year; provided, however, a board of education may
22 choose whether to require a national criminal history record check
23 from a prospective substitute teacher who has been employed by the
24 school district in the last year. Any person applying for

1 employment as a substitute teacher in more than one school district
2 shall only be required to have one national criminal history record
3 check, and, upon the request of the substitute teacher, that record
4 check shall be sent to all other school districts in which the
5 substitute teacher is applying to teach.

6 3. Any person employed as a full-time teacher by a school
7 district in this state in the five (5) years immediately preceding
8 an application for employment as a substitute teacher may not be
9 required to have a national criminal history record check, if the
10 teacher produces a copy of a national criminal history record check
11 completed within the preceding five (5) years and ~~a letter~~ an
12 affidavit from the school district in which the teacher was last
13 employed stating the teacher left in good standing ~~and~~. The
14 affidavit shall attest as to whether the teacher was the subject of
15 any allegation of inappropriate behavior with a student and whether
16 there was a pending or ongoing investigation of inappropriate
17 behavior between the teacher and a student. If an allegation of
18 inappropriate behavior was investigated by an employing school
19 district, the affidavit shall state whether the allegation was
20 substantiated, unsubstantiated, or closed with no finding of
21 misconduct. The affidavit shall include contact information for the
22 prior employing school district, which the prospective employing
23 school district shall contact to determine the validity of the
24 submitted affidavit.

1 4. Any person employed as a substitute teacher by a school
2 district in this state for a minimum of five (5) years immediately
3 preceding an application for employment as a full-time teacher in a
4 school district in this state may not be required to have a national
5 criminal history record check if the teacher produces a copy of a
6 national criminal history record check completed within the
7 preceding five (5) years and a letter from the school district in
8 which the teacher was employed as a substitute teacher stating the
9 teacher left in good standing and whether the teacher was the
10 subject of any allegation of inappropriate behavior with a student.

11 5. Any person employed as a full-time teacher by a school
12 district in this state for ten (10) or more consecutive years
13 immediately preceding an application for employment as a substitute
14 teacher in the same school district may not be required to have a
15 national criminal history record check for as long as the person
16 remains employed for consecutive years by that school district as a
17 substitute teacher, if the teacher left full-time employment in good
18 standing. If the teacher applies for employment as a substitute
19 teacher in another school district, a national criminal history
20 record check shall be required.

21 G. 1. Except as otherwise provided by this subsection, any
22 teacher employed by an Oklahoma school district prior to May 19,
23 2020, who does not have an Oklahoma criminal history record check
24 from the Oklahoma State Bureau of Investigation as well as a

1 national criminal history record check, as defined in Section 150.9
2 of Title 74 of the Oklahoma Statutes, on file with his or her
3 employing district as required by this section shall complete the
4 criminal history record checks upon the next renewal of his or her
5 standard teaching certificate as required by Section 6-154.1 of this
6 title or State Board of Education administrative rules promulgated
7 thereto.

8 2. Except as otherwise provided by this subsection, any other
9 person employed by an Oklahoma school district prior to May 19,
10 2020, who does not have an Oklahoma criminal history record check
11 from the Oklahoma State Bureau of Investigation as well as a
12 national criminal history record check, as defined in Section 150.9
13 of Title 74 of the Oklahoma Statutes, on file with his or her
14 employing district as required by this section shall have until July
15 1, 2022, to complete the criminal history record checks.

16 3. Any teacher eligible to retire from the Teachers' Retirement
17 System of Oklahoma who does not have an Oklahoma criminal history
18 record check from the Oklahoma State Bureau of Investigation as well
19 as a national criminal history record check, as defined in Section
20 150.9 of Title 74 of the Oklahoma Statutes, on file with his or her
21 employing district as required by this section shall complete the
22 criminal history record checks by the earlier of the following
23 dates:

24 a. July 1, 2022, or

1 b. at the next renewal of his or her standard teaching
2 certificate as required by Section 6-154.1 of this
3 title or State Board of Education administrative rules
4 promulgated thereto.

5 H. Any person who willfully submits an affidavit required by
6 paragraphs 1 and 3 of subsection F of this section which the person
7 knows to be false shall, upon conviction, be guilty of a misdemeanor
8 punishable by imprisonment in the county jail for not more than one
9 (1) year, or by a fine not more than Five Hundred Dollars (\$500.00),
10 or by both such imprisonment and fine.

11 I. A board of education shall be prohibited from hiring a full-
12 time teacher who fails to provide the affidavit required by
13 paragraphs 1 and 3 of subsection F of this section.

14 J. The provisions of this section shall not apply to technology
15 center employees hired on a part-time or temporary basis for the
16 instruction of adult students only.

17 ~~I.~~ K. The provisions of this section shall not apply to law
18 enforcement officers who are employed by an employing agency at the
19 time of application for employment at a public school district.

20 ~~J.~~ L. Nothing in this section shall be construed to impose
21 liability on school districts, except in negligence, for employing
22 prospective employees within the sixty-day temporary employment
23 window pending the results of the national criminal history record
24 check.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 24th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives